SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 857 of 2015 (YEAR: 2016)

CORAM: MADAN B. LOKUR, N.V. RAMANA

Swaraj Abhiyan
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	National Food Security Act, 2013, MGNREGA, 2005, Constitution of India
Sections:	Article 21, Article 47

JUDICIAL HEADNOTE & SUMMARY

Issued binding directives for drought management and social security implementation, holding that the right to food is an inseparable entitlement under Article 21.

RATIO DECIDENDI

The Court held that: Issued binding directives for drought management and social security implementation, holding that the right to food is an inseparable entitlement under Article 21. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Swaraj Abhiyan v. Union of India (Writ Petition (Civil) No. 857 of 2015) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning National Food Security Act, 2013, MGNREGA, 2005, Constitution of India, particularly Article 21, Article 47. Issued binding directives for drought management and social security implementation, holding that the right to food is an inseparable entitlement under Article 21.

OPERATIVE ORDER

ORDER: Decided